

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER  
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND  
IDENTIFIERS ARE FICTIONAL**

# **United States Court of Appeals for the Fourth Circuit**

## **Piedmont Booksellers Guild v. City of Norvale**

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Adverse Mandate

Issued June 12, 2026

The judgment entered May 22, 2026, is transmitted as the mandate of this Court. Exercising interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1), the Court denied dismissal of the recurring-events controversy as moot, reversed the district court's grant of preliminary relief, and remanded the matter for further proceedings consistent with the accompanying opinion. The Court denied the separate request to preserve preliminary entitlement through a limited corrective remand under Federal Rule of Civil Procedure 65(c) and (d).

The reversal concerns preliminary relief on the record developed for the January hearing. It does not constitute a final adjudication of the Guild's facial or as-applied First Amendment claims, direct entry of judgment against the Guild on the complaint, or foreclose consideration of later evidence in the district court. The district court shall conduct further proceedings within the scope of the opinion and may address requests properly presented after remand.

The allocation of appellate costs is governed by the certified judgment accompanying this mandate. A copy of the May 22 opinion is transmitted with that judgment as required by Federal Rule of Appellate Procedure 41(a).

The rehearing period expired June 5, 2026. No party filed a petition for panel rehearing, a petition for rehearing en banc, or a motion to stay issuance. The seven-day interval prescribed by Rule 41(b) expired on June 12, and the clerk entered an ordinary release order after reviewing the docket. No separate appellate stay remains in effect.

This mandate takes effect upon issuance under Rule 41(c). The district court reacquires authority to implement the interlocutory reversal and manage the pending civil action. The appellate decision resolves only whether the January 23 preliminary injunction may remain in place on the record reviewed; the district court retains responsibility for unresolved merits, case management, and any later application supported by the governing law and then-existing facts.

The clerk sends the certified judgment, opinion, and costs direction to the clerk of the United States District Court for the District of South Carolina for filing in Case No. SYN-DSC-26-CV-0107. Counsel for the City of Norvale and Piedmont Booksellers Guild receive electronic notice on the date of issuance. Issued under the seal of the Court on June 12, 2026.